

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

COOL LIVING LLC, *Complainant*

v.

ALPI U.S.A., INC. AND ALPI AIR & SEA A/S, *Respondents.*

DOCKET NO. 25-28

Served: July 8, 2026

ORDER OF: Mary Apostolakos HERVEY, *Administrative Law Judge.*

ORDER SETTING STATUS CONFERENCE

On July 6, 2026, Complainant filed the Motion for Extension of the July 13, Deadline to Depose Mr. Michael Haahr Hansen and Exhibits 1-4. Given the ongoing discovery disputes in this proceeding, I find that a status conference is necessary to discuss a plan for completing discovery of all key witnesses within a reasonable time frame. Both parties should be prepared to discuss: how to facilitate the taking of Michael Haahr Hansen's deposition; when, where, and by what manner the deposition shall be conducted; whether service of a subpoena will be required or whether the witness will voluntarily appear; whether counsel for Respondents have authority to accept service of a subpoena on behalf of the witness, and if not whether they can facilitate personal service on the witness; and how much time will be needed to complete discovery in this proceeding.

Respondents should be prepared to discuss whether former employee Michael Haahr Hansen is a party to any agreement in which he is subject to an ongoing cooperation clause that would obligate him to assist Respondents in this proceeding.

If possible, the parties shall meet and confer in advance of the status conference so that a joint plan can be presented to Judge Hervey at the status conference.

A status conference will be held on **Tuesday, July 14, 2026, at 10:00 am EDT.**

Accordingly, it is

ORDERED that the parties appear for a status conference on **Tuesday, July 14, 2026, at 10:00 AM EDT** to facilitate resolution of the pending motion and discovery dispute. The conference will be conducted via Teams and the parties' representatives will receive a Teams link; it further

ORDERED that Respondents shall file a written response to Complainant's Motion for Extension of the July 13, Deadline to Depose Mr. Michael Haahr Hansen with electronic service on all parties by **July 13, 2026, at 6:00 PM EDT**; it is further

ORDERED that the parties be prepared at the status conference to discuss, *inter alia*, how to facilitate the taking of Michael Haahr Hansen's deposition; when, where, and by what manner the deposition shall be conducted; whether service of a subpoena will be required or whether the witness will voluntarily appear; whether counsel for Respondents have authority to accept service of a subpoena on behalf of the witness, and if not whether they can facilitate personal service on the witness; and how much time will be needed to complete discovery in this proceeding; it is further

ORDERED that Respondents be prepared to discuss whether former employee Michael Haahr Hansen is a party to any agreement in which he is subject to an ongoing cooperation clause that would obligate him to assist Respondents in this proceeding; it is further

ORDERED that the parties shall make an effort to meet and confer in advance of the status conference so that a joint plan can be presented to Judge Hervey at the status conference.

MARY A. HERVEY -S
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Date: 2026.07.08 10:37:47 -04'00'

Mary Apostolakos Hervey
Administrative Law Judge